

Terms of Service

Effective date: [EFFECTIVE DATE]

Draft for legal review — not yet in force. These Terms are a starting point and must be reviewed by a licensed attorney before use.

These Terms of Service ("**Terms**") are a legal agreement between you and **[COMPANY LEGAL NAME]**, a [STATE OF FORMATION] [ENTITY TYPE] ("**Cirqlback**," "**we**," "**us**"), governing your access to and use of the Cirqlback websites, apps, tap-to-earn features, and related services (collectively, the "**Service**"). By creating an account, tapping a Cirqlback tag, or otherwise using the Service, you agree to these Terms and to our [Privacy Policy](#). If you do not agree, do not use the Service.

Business customers and Community Coordinators are also subject to additional agreements (the [Merchant Agreement](#) and the [Coordinator Independent Contractor Agreement](#), respectively). If those conflict with these Terms, the specific agreement controls for that relationship.

1. Who may use the Service

You must be at least 13 years old (or the minimum age of digital consent in your jurisdiction) to use the Service, and at least 18 to enter a paid business or coordinator relationship. If you use the Service on behalf of an organization, you represent that you are authorized to bind it to these Terms.

2. Accounts

- **Customers** may use core tap-to-earn features anonymously or with an optional email. You are responsible for activity under your account and for keeping any credentials secure.
- **Businesses** and **Coordinators** register accounts and are responsible for the accuracy of the information they provide.
- You agree to notify us promptly at [SUPPORT EMAIL] of any unauthorized use of your account. We are not liable for losses caused by unauthorized use you could have prevented.

3. The Service, in brief

Cirqlback is a local loyalty and discovery platform. Customers "tap" an NFC tag (or scan a QR code) at participating businesses to earn points, rewards, streaks, badges, and other digital recognitions, and to discover local businesses. Businesses run loyalty campaigns, may operate a hosted business page, and may participate in multi-store campaigns. Community Coordinators grow and support businesses within a territory.

Points, rewards, badges, and other in-app items have no cash value, are not property, are not transferable except as expressly enabled in the Service, and may expire or be adjusted as described in the Service. We may modify, suspend, or discontinue rewards mechanics at any time. Rewards are ultimately fulfilled by the issuing business, not by Cirqlback, except for platform-level rewards we expressly provide.

4. Acceptable use

You agree not to:

- use the Service for any unlawful, fraudulent, or harmful purpose;
- tap, script, automate, or otherwise generate points, rewards, or referrals you did not legitimately earn, or otherwise game or manipulate the rewards, streak, referral, leaderboard, or campaign systems;
- attempt to access accounts, data, or areas of the Service you are not authorized to access;
- probe, scan, hack, reverse engineer, or interfere with the Service or its security, except as permitted by non-waivable law;
- upload content that is illegal, infringing, deceptive, defamatory, harassing, or that you lack the rights to; or
- misrepresent your identity, your business, or your affiliation.

We may investigate suspected violations and may suspend or terminate access, void illegitimately obtained rewards, and cooperate with law enforcement.

5. Business and coordinator obligations

Businesses are responsible for honoring the rewards and offers they publish, for the accuracy of their listings and hosted pages, and for compliance with laws applicable to their promotions (including sweepstakes/contest, alcohol, and consumer-protection laws where relevant). Coordinators act as independent contractors and have no authority to bind Cirqlback except as expressly stated in their agreement.

6. Payments

Paid plans, add-ons, and related fees are described at checkout and in the [Merchant Agreement](#). Prices are set by Cirqlback and enforced server-side. Payment processing is handled by **Stripe**, subject to Stripe's terms; you authorize us and Stripe to charge your payment method for amounts you incur. Except as required by law or expressly stated, fees are non-refundable. Subscriptions renew automatically until cancelled as described in the Merchant Agreement.

7. Intellectual property

The Service, including its software, design, trademarks, and content we provide, is owned by Cirqlback or its licensors and is protected by law. We grant you a limited, revocable, non-exclusive, non-transferable license to use the Service as intended. You retain ownership of content you submit (e.g., business info, images, badge art), and you grant us a worldwide, royalty-free license to host, display, and use that content solely to operate and promote the Service. You represent you have the rights to any content you submit.

8. Third-party services

The Service integrates third parties such as Stripe (payments/payouts), mapping providers, and AI providers (for optional assistant and insight features). Your use of those features may be subject to the third party's terms, and we are not responsible for third-party services. AI-generated help content may be imperfect — verify anything important.

9. Disclaimers

THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. WE DO NOT WARRANT THAT THE SERVICE WILL BE UNINTERRUPTED, ERROR-FREE, OR SECURE, OR THAT IT WILL PRODUCE ANY PARTICULAR BUSINESS RESULT. Some jurisdictions do not allow certain disclaimers, so some may not apply to you.

10. Limitation of liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, CIRQLBACK AND ITS OWNERS, OFFICERS, AND AGENTS WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, DATA, OR GOODWILL. OUR TOTAL LIABILITY FOR ANY CLAIM RELATING TO THE SERVICE WILL NOT EXCEED THE GREATER OF (A) THE AMOUNTS YOU PAID US IN THE 12 MONTHS BEFORE THE EVENT GIVING RISE TO THE CLAIM, OR (B) US \$100. These limits are a fundamental basis of our agreement.

11. Indemnification

You agree to indemnify and hold harmless Cirqlback and its owners, officers, and agents from claims, damages, and expenses (including reasonable legal fees) arising from your use of the Service, your content, your promotions or business practices, or your breach of these Terms or applicable law.

12. Termination

You may stop using the Service at any time. We may suspend or terminate your access, with or without notice, for any breach of these Terms or to protect the Service or others. Sections that by their nature should survive termination (including payments owed, IP, disclaimers, liability limits, and indemnity) survive.

13. Changes to the Service or Terms

We may update the Service and these Terms. If we make material changes, we will provide notice (e.g., email or in-app) before they take effect where required. Your continued use after changes take effect means you accept the updated Terms.

14. Governing law and disputes

These Terms are governed by the laws of the State of **[GOVERNING LAW STATE]**, without regard to conflict-of-laws rules.

[Choose one, with counsel:] (a) the state and federal courts located in **[VENUE COUNTY, STATE]** have exclusive jurisdiction; **or** (b) disputes are resolved by binding individual arbitration and you and Cirqlback waive class actions. *Arbitration and class-waiver clauses have specific enforceability requirements — do not enable without attorney review.*

15. Miscellaneous

These Terms, plus any applicable Merchant or Coordinator agreement and the Privacy Policy, are the entire agreement between you and Cirqlback regarding the Service. If any provision is unenforceable, the rest remains in effect. Our failure to enforce a provision is not a waiver. You may not assign these Terms without our consent; we may assign them in connection with a merger, acquisition, or sale of assets.

16. Contact

Questions about these Terms: **[LEGAL EMAIL]** · **[COMPANY LEGAL NAME]**, **[BUSINESS ADDRESS]**.

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